Executive Order

Whereas it is desirable, owing to interruption of the Tokyo-Bonin cable, to provide for the provisional use of the Naba-Yap-Guam cables in view of the importance of rapid communication between Washington and Tokyo on account of the Conference now in session, and

Whereas the Governments of the United States and Japan have consented to the temporary operation of the Naba-Yap-Guam cables on the following conditions:

"1. Pending the repair of the Tokyo-Bonin cable, which shall be undertaken immediately upon the improvement of atmospheric conditions in April or May next, the Naba-Yap-Guam cables shall be used as auxiliaries to the Tokyo-Bonin-Guam cable for the transmission of messages between Japan and the United States.

"2. The Naba and Yap ends of the cable are to be operated by the Government of Japan and the Guam end by the Government of the United States.

"3. Particulars relating to the cable service are to be arranged directly between the two Governments or between their representatives or agents in charge of the operation of the cables, subject to the approval of the two Governments.

"4. The cables shall be operated for the financial account of the five Principal Allied and Associated Powers. In accounting for such operation, the income, after deducting operating expenses, shall be apportioned in accordance with the final disposition to be made of the cables.

"5. The consent of the Governments of Great Britain, France, and Italy to the use of the cables, as herein provided, shall be secured.

"6. The present arrangement may be terminated upon thirty days notice by either Government to the other.

"7. The present arrangement is entirely without prejudice to any ultimate agreement which may be reached with regard to the disposition and working of the former German cables radiating from Yap."

Whereas the consent of the Governments of Great Britain, France and Italy, mentioned in Paragraph 5 of the above stated conditions, has been obtained;

Whereas the Yap-Guam cable was formerly owned and operated by the Deutsche-Niederlandische Gesellschaft, of Cologne, Germany, and by the Treaty of Versailles and the Treaty of Peace between the United States and Germany, signed August 25, 1921, the German Government renounced on her own behalf and on behalf of her nationals in favor of the Principal Allied and Associated Powers all rights, titles or privileges of whatever nature in these cables, and negotiations had been carried on, though not yet concluded, with regard to them; and

Whereas the Island of Guam was placed by Executive Order, dated December 23, 1898, under control of the Navy Department, and the Guam end of the cable was sealed during the war upon instructions issued to the Governor of Guam,

Now, therefore, in consideration of the public interest and the urgent need for the temporary use of the Naba-Yap-Guam cables, the Secretary of the Navy is hereby authorized to make, on behalf of the Government of the United States, the necessary arrangements for the operation of the Guam end of these cables, as provided in Paragraph 3, of the above stated conditions, with a view to reestablishing communication over the aforesaid cables as promptly as possible.

WARREN G HARDING

THE WHITE HOUSE,
December 24, 1921.

[No. 3600.]